

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 22, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal and Dicky Shanor. Absent: Dr. Mark Rinne and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, and pursuant to support received by Mr. Cook and Mr. Johnson, Agenda Item #10 was removed from the Consent Agenda. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on October 8, 2018. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Mr. Johnson moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

ORDINANCE – 2nd READING – Amending Chapter 12.24, Art in Public Places, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming, pertaining to the Art in Public Places Committee. Reporting for Finance Committee, Mr. Case moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of governing body present.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, a portion of the west half, of the west half of Section 17, T14N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located west of and adjacent to Powderhouse Road, north of Spirit Lane). Reporting for Public Services Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified

Development Code, changing the zoning classification from County A-1 Agricultural and Rural Residential to MUR Mixed-Use Residential Emphasis for a portion of the west half, of the west half of Section 17, T14N, R66W, of the 6th Principal Meridian Cheyenne, Wyoming (located west of and adjacent to Powderhouse Road, north of Spirit Lane) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

RESOLUTION – Designating Arts Cheyenne as the Local Arts Agency for the City of Cheyenne, Wyoming. Mr. Case moved to adopt, seconded by Mr. Johnson. Upon inquiry, Bill Lindstrom, Executive Director, Arts Cheyenne, reviewed the history and purpose of the association and described public arts services envisioned to be provided by Arts Cheyenne through the resolution and an affiliated Memorandum of Understanding (MOU). Upon further inquiry, Mr. Lindstrom provided information on: Proposed Arts Cheyenne services related to an ordinance currently before the governing body (Agenda Item #7), the resolution and MOU, which would authorize Arts Cheyenne to serve as the City’s Art in Public Places Committee; the resolution and MOU; communication with City staff on community development projects; public/private partnering and engaging the community to define and enhance Cheyenne’s public arts environment. Discussion included the following topics: Developing guidelines as set forth in the MOU; past Art in Public Places projects; funding consideration for the next fiscal year budget, and public/private partnering. Motion carried. Voting “yes” – all members of the governing body present. (#5954)

[CA] RESOLUTION – Providing for the review and approval of the South Cheyenne Water & Sewer District’s Federal SLIB Chapter 3 Mineral Royalty grant application before the Wyoming State Loan and Investment Board for the emergency repair of the existing sanitary sewer siphon crossing of Crow Creek Project. Motion (per Consent Agenda) carried. (#5955)

RESOLUTION – Declaring Cheyenne a City of Kindness and Generosity. Geri Maria Johnson commented in support of the resolution. Mr. Roybal moved to adopt, seconded by Mr. Johnson. Discussion included the following topics: Following the “golden rule” philosophy; encouraging a kind and generous community; concern with legislating the topic and setting community morality decisions through a resolution; Compassionate Cheyenne organization efforts and past discussions; resolution serving only as a statement of opinion; remarks contained in a recent local newspaper article and offense to the remarks taken by some governing body members; expressions of both support and opposition to the resolution, and intimidating comments that had been made involving support for the resolution. Motion failed (due to a tie vote). Voting “yes” – Mr. Cook, Mr. Johnson, Mr. Laybourn and Mr. Roybal. Voting “no” – Mr. Case, Mr. Luna, Mr. Shanor and Mayor Orr. (#5956)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for South Park Estates, 10th Filing, a replat of Lots 1, 2, 5, and a portion of Lot 3, Block 1, South Park Estates, 6th Filing, Cheyenne, Laramie County, Wyoming (located between Partoyan Drive and Walterscheid Boulevard, north of I-80) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Hope Subdivision, 4th Filing, a replat of Lot 2, Block 1, Hope Subdivision, 2nd Filing, Laramie County, Wyoming (located at the southeast corner of the intersection of E. Nation Road and S. Avenue B-6) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Proclaiming ‘Cheyenne Anthem’ as the official song for the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] Contract between the City of Cheyenne, Youth Alternatives Division, and State of Wyoming, Department of Family Services, for kinship advocacy services for displaced, at-risk youth. Motion (per Consent Agenda) carried. (#6915)

[CA] Minimum Revenue Guaranteed Payment agreement between the City of Cheyenne, Wyoming, and the Cheyenne Regional Air Service Focus Team, c/o Cheyenne LEADS. Motion (per Consent Agenda) carried (amount not to exceed \$600,000.00). (#6916)

[CA] Grant Award between the City of Cheyenne, Police Department, and Wyoming Office of Homeland Security to purchase protective gear for the SWAT team. Motion (per Consent Agenda) carried. (#6917)

Agreement between the City of Cheyenne and FCI Constructors of Wyoming, LLC, for the pre-construction and construction phase services for Cheyenne Municipal Courts Building (1% Specific Purpose Sales Tax). Joe Dougherty questioned the scope of services and the City’s financial commitment affiliated with the agreement. In response, Vicki Nemecek, Director of Public Works, advised the purpose of the agreement is to hire FCI as the Construction Manager At Risk (CMAR) for the project with compensation in the amount of \$21,485.00 for pre-construction services and a stipulated maximum fee of \$1,246,043.00 for construction phase services. Brandon Munz, FCI Constructors, stated the contract at this time is only authorizing pre-construction services involving budgeting front work to establish the GMP (Guaranteed Maximum Price). Noel Griffith, Noel Griffith Jr. & Associates Architects, architect for the project, advised FCI will be very involved in the project design and at about 50% completion of the design and working drawings, the governing body will be presented with the GMP information. Comment followed on finding funding related to the second floor plans for the building and process and topics to be discussed during the pre-construction services phase. Upon inquiry, Mr. Munz provided information on the process to arrive at the GMP amount, which will result in a proposed amendment for governing body approval; stated typically, if there isn’t any major change in the scope of services, the final dollar amount comes in under the estimated GMP, and value engineering will be one of the elements discussed during the pre-construction process. Mr. Case reported there was no recommendation on the item from Finance Committee. Mr. Roybal moved to approve, seconded by Mr. Case. Mr. Case moved to amend by substitute dated October 22, 2018, seconded by Mr. Johnson. Ms. Nemecek noted the substitute includes the construction costs for the first (\$6.4 million) and second (\$4,138,750.00) floors of the building, for a total construction budget of \$10,538,750.00, and also includes Exhibit A (CMAR fee proposal) and Exhibit B (CMAR fee structure). Upon inquiry, Ms. Nemecek clarified the numbering of pages contained in the agreement vs. the exhibit pages. Comments followed in support of the agreement

and previous work by FCI on past City projects, and timeliness in moving forward with the project. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#6918)

[CA] Contract Modification No. 1 to Contract #6427 between the City of Cheyenne, Fire and Rescue Department, and Physio-Control, Inc., Redmond, Washington, for renewal maintenance services for factory-authorized inspection and repair services of LIFEPAK devices. Motion (per Consent Agenda) carried (amount not to exceed \$51,949.80). (#6427)

[CA] Contract Modification No. 1 to Contract #6892 between the City of Cheyenne, Public Works Department, and Noel Griffith Jr. & Associates Architects, Cheyenne, Wyoming, for design engineering of a second level shell and core to the Cheyenne Municipal Court Project (1% Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Amendment No. 1 to Contract #6854, Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Control and Animal Shelter Services – referred to Finance Committee.

[CA] Consideration of Bid #E-7-19 for furnishing two new 2018-2019 rough mowers for the City of Cheyenne Golf Division. Motion (per Consent Agenda) carried (accept bid from Stotz Equipment, Evansville, Wyoming, in an amount not to exceed \$109,500.00).

[CA] Consideration to purchase 76 Self Contained Breathing Apparatuses (SCBA’s) along with accessory equipment from L.N. Curtis & Sons, Salt Lake City, Utah, for the Cheyenne Fire and Rescue Department. Motion (per Consent Agenda) carried (accept bid in an amount not to exceed \$620,665.00)

[CA] Consideration of Bid #E-6-19 for furnishing one new 2018-2019 motor grader for the Street and Alley Division (2015 – 2018 1% Sales Tax) – referred to Finance Committee.

Appointment of Alexis Arp, Maggie Black, Ashen Doty, Darby Downham, Raegan Downham, Dylan Fertig, Julia Horst, Keiran Loughran, Marie Lucas, Emily Lucero, Lars Quinlivan, Kenitra Shanks, Dominick Singleton and Marty Zhang to the 2018-2019 Mayor’s Youth Council. Mr. Roybal moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointments).

Report from the Cheyenne Animal Shelter Board pursuant to Resolution No. 5953. Randy Reed, attorney for the Animal Shelter Board, provided information pertaining to directives contained within the resolution, noting discussions between himself and Sylvia Hackl, City Attorney, and referencing an affiliated memorandum that had been submitted to governing body members relating to a proposed amendment to the City’s contract with the Animal Shelter, which had been referred to Finance Committee earlier in the meeting (Agenda Item #17 (c)). Upon inquiry, Mr. Reed stated his understanding that additional Animal Shelter costs pursuant to the directives would be in addition to the monies the City is paying the Shelter under the current

agreement, and the cost of implementing the directives may be spread between the governmental entities receiving animal shelter services. Comments included concern with additional costs to the City pursuant to information contained in the aforementioned memorandum and probable further discussion on the topic at the next Finance Committee meeting.

Announcement was made of a Public Hearing to be held November 13, 2018 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a special malt beverage annual permit application filed with the City Clerk's office for The City of Cheyenne d/b/a City of Cheyenne – Civic Center, 510 W. 20th St., Cheyenne, Wyoming.

Announcement was made that due to the Veterans Day holiday and City offices being closed on Monday, November 12, 2018, the regularly scheduled City Council meeting will instead be held on Tuesday, November 13, 2018 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming.

Under other business:

Tom Mason, Director, Cheyenne Metropolitan Planning Organization, provided an update on the MPO's planning projects for the Dell Range and US Highway 30 corridor, and the Whitney Road plan. Mr. Mason reviewed the physical areas involved and the status of each plan; anticipated completion dates for the plans, which will then come before the governing body, and funding availability. He advised traffic data will be reviewed to assess the need to make any intermediate, short-term traffic solution recommendations for US 30 and Whitney Road, and Dell Range and Whitney Road, due to the projects' proposed actual construction starting time frame. During his comments, Mr. Mason submitted a handout containing information about the projects (on file with City Clerk's office). Mayor Orr advised she requested Mr. Mason provide the report due to the number of serious accidents in the area over the weekend and shared that communications have been made with state and county project partners in pledging commitment to review data from the accidents to discuss any stop-gap traffic measures that may be taken since construction on the projects isn't slated until 2021 to 2024. Mayor Orr also stated communication with the school district had also been made regarding Dakota Crossing and the Safe Route to Schools (school crosswalk area). Comments followed on the need for moving the projects forward; concern with traffic volume impact and incidents, and length of time it has taken to develop the plans. Mr. Mason commented on crash and traffic data and increased traffic volumes in these areas over the years. Mr. Case offered to be a contact point for interested residents on the topic. Donn Edmunds expressed concern with "poor drivers" who do not safely operate vehicles; increased traffic volume on small lane roads due to residential subdivision growth, and traffic patterns. Wendy Volk stated moving forward with the City's Christensen Road Overpass project in a more timely manner would perhaps help with traffic issues in the vicinity. Upon inquiry, Amy Allen, City Engineer, advised the bid issuance date for the Christensen Road project is tentatively set for January 8, 2019. Mayor Orr expressed financing, designing and planning for big projects involve a lot of time and she is in discussions regarding utilizing a project manager to assist in overseeing large projects. [City Clerk note: During comments, Mr. Roybal, due to an unforeseen circumstance, excused himself from the meeting at 7:14 p.m.]

Mr. Johnson commented on the pending retirement of City Clerk Carol Intlekofer, noting her encouragement, assistance and sharing of knowledge during his term of office, and expressed appreciation for her many years of service to the City. Governing body members recognized Ms. Intlekofer with a round of applause.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
November 1, 2018